

Court No. - 21

Case :- WRIT - C No. - 509 of 2023

Petitioner :- Vandana Singh

Respondent :- Uttar Pradesh Power Corporation Limited And 2 Others

Counsel for Petitioner :- Sanjay Kumar Singh

Counsel for Respondent :- C.S.C.,Narendra Kumar Tiwari

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ajit Singh,J.

The petitioner has challenged the recovery citation dated 07.12.2022 issued by the respondent no.3 and notice dated 31.05.2022 and final assessment order dated 31.05.2022.

Learned counsel for the respondent-Electricity department concedes that fifteen days clear time was not available to the petitioner between the date of service of the order of provisional assessment and passing of the final assessment order, which is mandatory under Clause 6.8 of the U.P. Electricity Supply Code, 2005.

Having regard to said admitted position, we quash the final assessment order dated 31.05.2022 and recovery citation dated 07.12.2022 leaving it open to the respondents to pass a fresh order strictly in consonance with the procedure prescribed under law.

In result, the writ petition stands allowed to the extent indicated above.

Order Date :- 13.1.2023

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